

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DERON TINGLING,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MELVIN CHITTUM, Tax No. 941547, POLICE
OFFICER MATTHEW T. HART, Shield No. 026047,
POLICE OFFICER ALLEN WANG, Shield No. 10828,
POLICE OFFICER DARREN SUKENNIKOFF, Shield
No. 14881, SERGEANT ROBERT GUTIERREZ, Tax No.
944627, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 9, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MELVIN CHITTUM, Tax No. 941547, 45th Precinct, 2877 Barkley Ave, The Bronx, NY 10465
POLICE OFFICER MATTHEW T. HART, Shield No. 026047, Highway Patrol 1, 2 Bronx River Pkwy; Bronx, New York 10462
POLICE OFFICER ALLEN WANG, Shield No. 10828, Highway Patrol 1, 2 Bronx River Pkwy; Bronx, New York 10462
POLICE OFFICER DARREN SUKENNIKOFF, Shield No. 14881, 45th Precinct, 2877 Barkley Ave, The Bronx, NY 10465
SERGEANT ROBERT GUTIERREZ, Tax No. 944627, 45th Precinct, 2877 Barkley Ave, The Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DERON TINGLING,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
MELVIN CHITTUM, Tax No. 941547, POLICE
OFFICER MATTHEW T. HART, Shield No. 026047,
POLICE OFFICER ALLEN WANG, Shield No. 10828,
POLICE OFFICER DARREN SUKENNIKOFF, Shield
No. 14881, SERGEANT ROBERT GUTIERREZ, Tax No.
944627, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff DERON TINGLING, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims in this action only relate to the August 9, 2016 arrest and subsequent criminal prosecution of plaintiff Deron Tinging. Plaintiff alleges that on August 9, 2016 at 10:40 pm defendants unlawfully stopped, questioned, frisked, searched, seized, falsely arrested/ imprisoned plaintiff in the vicinity of 555 Hutchinson River Parkway, Bronx, NY, and forced plaintiff to partake in sobriety tests. Defendants transported plaintiff without probable cause or legal justification and against his will to the 45th Precinct where he was unlawfully detained and the officers falsely alleged that he refused to take the IDTU chemical test. Plaintiff was transported to Bronx Central Booking whereat the unlawful detention continued until August 10, 2016 when he was maliciously prosecuted and arraigned in Bronx County Criminal Court. Plaintiff made 21 court appearances and all charges against him were dismissed on July 26, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff

the right to a fair trial, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DERON TINGLING is a resident of the state of New York.

3. POLICE OFFICER MELVIN CHITTUM, Tax No. 941547, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MELVIN CHITTUM, Tax No. 941547, is and was at all times relevant herein, assigned to the 45th Precinct.

5. POLICE OFFICER MELVIN CHITTUM, Tax No. 941547 is being sued in his individual and official capacity.

6. POLICE OFFICER MATTHEW T. HART, Shield No. 026047, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER MATTHEW T. HART, Shield No. 026047, is and was at all times relevant herein, assigned to the Highway Patrol 1 Unit.

8. POLICE OFFICER MATTHEW T. HART, Shield No. 026047, is being sued in his individual and official capacity.

9. POLICE OFFICER ALLEN WANG, Shield No. 10828, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER ALLEN WANG, Shield No. 10828, is and was at all times relevant herein, assigned to the Highway Patrol 1 Unit.

11. POLICE OFFICER ALLEN WANG, Shield No. 10828, is being sued in his individual and official capacity.

12. POLICE OFFICER DARREN SUKENNIKOFF, Shield No. 14881, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER DARREN SUKENNIKOFF, Shield No. 14881, is and was at all times relevant herein, assigned to the 45th Precinct.

14. POLICE OFFICER DARREN SUKENNIKOFF, Shield No. 14881, is being sued in his individual and official capacity.

15. SERGEANT ROBERT GUTIERREZ, Tax No. 944627, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT ROBERT GUTIERREZ, Tax No. 944627, is and was at all times relevant herein, assigned to the 45th Precinct.

17. SERGEANT ROBERT GUTIERREZ, Tax No. 944627, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-4 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental

21. to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on February 12, 2019.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. By way of background, on August 9, 2016 plaintiff did not have anything alcoholic to drink.

28. At approximately 10:30 pm on August 9, 2016 plaintiff drove to a hotel located at 555 Hutchinson River Parkway, Bronx, NY with the intention of staying the night at the hotel.

29. However, when plaintiff arrived at the hotel, he was advised that the hotel was no longer a hotel and was now a homeless shelter.

30. Plaintiff returned to his vehicle and as he was exiting the parking lot, he ran over a piece of wood which became lodged underneath his vehicle.

31. Plaintiff attempted to drive forward and backward repeatedly to dislodge the wood from underneath his vehicle.

32. A security guard from the homeless shelter observed plaintiff driving forward and backward, approached plaintiff, removed the keys from plaintiff's vehicle and called the police to report plaintiff as a suspected intoxicated driver.

33. Plaintiff sat on the hood of his vehicle and waited for the police to respond to the location.

34. At approximately 11:40 pm on August 9, 2016 defendants responded to 555 Hutchinson River Parkway, New York and falsely arrested and imprisoned plaintiff, without probable cause and defendants made false allegations against plaintiff and fabricated evidence about whether plaintiff passed the field sobriety tests performed on him in order to justify their arrest of plaintiff.

35. Plaintiff passed the coordination tests and the breathalyzer test that was administered to him on scene, but the officers falsely claimed that he failed the test, without probable cause.

36. Plaintiff was unlawfully handcuffed and transported against his will to the 45th Precinct where he was unlawfully searched and detained for several hours.

37. At approximately 2:00 am on August 10, 2016 the defendants tried to administer a chemical test on plaintiff and plaintiff asked to make a phone call before he took the chemical test.

38. The defendants refused to allow plaintiff to make a phone call and although plaintiff did not refuse the chemical test the defendants falsely alleged that plaintiff refused to take the chemical test.

39. The defendants provided the Bronx County District Attorney's Office with false, misleading and incomplete evidence that they purportedly used to establish probable cause to arrest and prosecute plaintiff.

40. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

41. Plaintiff was transported to Bronx Central Booking August 10, 2016 and was arraigned in Bronx Criminal Court, approximately 24 hours after he was initially detained.

42. At arraignment he was charged with serious crimes that he did not commit and for which the officers lacked probable cause to accuse him of committing, including but not limited to Operating a motor vehicle while under the Influence.

43. Plaintiff was released on his own recognizance at arraignment.

44. Plaintiff was required to appear in criminal court on 21 occasions to address the false charges brought against him.

45. All criminal charges terminated in plaintiff's favor and were dismissed and sealed in their entirety on July 26, 2018.

46. Plaintiff missed 21 days of work and lost income for each day of work he missed.

47. Plaintiff was required to pay Court fees, was required to pay to have his vehicle returned, and was forced to pay fees to change the dates when he would be on vacation in order to appear in criminal court.

48. Plaintiff's was embarrassed that his colleagues at work found out that he was arrested and was being prosecuted for drunk driving, and his reputation was also damaged by the false arrest and malicious prosecution.

49. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

50. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

51. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime.

52. At no time relevant herein was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

53. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

54. During the course of arresting plaintiff, the defendant police officers used excessive force against plaintiff, causing plaintiff to suffer physical injuries which required medical attention.

55. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

56. The officers knew they lacked probable cause to arrest plaintiff.

57. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of a fair trial, and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

73. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiff.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

80. Plaintiff repeats and realleges paragraphs 1 through 79 as if fully set forth herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

88. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 87 with the same force and effect as if fully set forth herein.

89. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

90. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

91. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

92. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

93. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Failure to Intervene

96. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

97. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

98. Defendants failed to intervene to prevent the unlawful conduct described herein.

99. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION**Negligence**

104. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants owed a duty of care to plaintiff.

106. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting and battering plaintiff.

107. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

108. All of the foregoing occurred without any fault or provocation by plaintiff.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

TENTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

110. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Bernard Miller. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

112. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION**Assault**

114. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

116. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

TWELFTH CAUSE OF ACTION**Battery**

118. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

120. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

121. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

THIRTEENTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment****Rights**

122. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. The use of excessive force by defendants by throwing plaintiff to the ground and repeatedly punching plaintiff in the face was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

124. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

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JURY DEMAND

125. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Deron Tingling demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 9, 2019

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 9, 2019

_____/s/
DAVID M. HAZAN